

Andhra Pradesh Revenue Recovery Act, 1864

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State of Andhra Pradesh - Act

Andhra Pradesh Revenue Recovery Act, 1864

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Andhra Pradesh Revenue Recovery Act, 1864

Act 2 of 1864

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Andhra Pradesh Revenue Recovery Act, 1864

Act

No. 2 of 1864

An Act to consolidate the Law for the Recovery of Arrears of Revenue in the State of Andhra Pradesh

Whereas it is advisable that the laws relating to the collection of the public revenue should be consolidated and simplified it is hereby enacted as follows:

1.

Interpretation clause-Landholders:

- The term "landholders" as used in this Act, shall betaken to comprise the following persons;

All persons holding under a Sanad-i-Milkiyat-i-istimrar, all other Zamindars, Shrotriyamdars, Jagirdars, Inamdars and all persons farming the Land Revenue under the State Government. All holders of land under Ryotwari settlements, or in

any way subject to the payment of revenue direct to the State Government.

Public Revenue: - Public Revenue due on land shall, for the purposes of this Act, be taken to include cases or other dues payable to the State Government on account of water supplied for irrigation.

2.

Security for Revenue:

- The land, the buildings upon it, and its products, shall be regarded as the security of the public revenue.

3.

Landholder when and to whom to pay kist—Board of Revenue may alter amounts and dates of payment:

- Every landholder shall pay to the Collector, or other officer empowered by him to receive it, the revenue due upon his land on or before the day on which it falls due, according to the kistbandi or other engagement, and where no particular day is fixed, then within the time when the payment falls due according to local usage :

Provided that, except where property is held under Sanad-i-Milkiyat-i-istimrar or other similar instrument, it shall be lawful for the Board of Revenue, by notification published in the District Gazette, to alter and fix, from time to time, the amount of the several kists or instalments, and the dates at which they shall respectively become payable.

[Explanation:— The reference to the District Gazette in this Act shall in its application to the territories specified in sub-section (1) of Section 3 of the States Re-organisation Act, 1956 (Central Act 37 of 1956) ; be construed as references to the Andhra Pradesh Gazette, until a District Gazette is published for the district in the said territories.]

[The explanation was added by Section 5 of the Madras Rent & Revenue Sales and the Madras Revenue Recovery (A.P.—Extension and Amendment) Act, 1958.]

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4.

Arrears of Revenue:

- When the whole or portion of a kist shall not be so paid, the amount of the kist or of its unpaid portion shall be deemed to be an arrear of revenue.

5.

Arrears of revenue how recovered:

- Whenever revenue may be in arrear, it shall be lawful for the Collector, or other officer empowered by the Collector in that behalf, to proceed to recover the arrear, together with interest and costs of process, by the sale of defaulter's movable and immovable property, or by execution against the person of the defaulter in manner hereinafter provided.

6.

Terms of Sanad-i-Milkiyat-i-istimrar to be observed:

- If the defaulter held under Sanad-i-Milkiyat-i-istimrar or other similar instrument, the mode of recovering the arrear shall be in accordance with the terms of such Sanad. In the case of other defaulters, the Collector or other officer empowered by the Collector in that behalf may at his discretion, proceed to realise the arrear by the sale of either the movable or immovable property of the defaulter, or of both.

7.

Interest on arrears:

- Arrears of revenue shall bear interest at the rate of 6 per cent per annum.

8.

Rules for seizure and sale of movable property:

- In the seizure and sale of movable property for arrears of revenue, the following rules shall be observed.

First : Demand in writing: - The Collector, or other officer empowered by the Collector in that behalf, shall furnish to the person employed to distrain the property of a defaulter ; a demand in writing and signed with his name, specifying the name of the defaulter, the amount of the arrear for which the distress may be issued, and the date on which the arrears fell due. The persons employed to distrain shall produce the writing which, if the arrear together with the batta due to him, under Section 53, be not at once paid, shall be his authority for making the distress, and on the day on which the property may be distrained, shall deliver a copy of such writing to the defaulter, endorsing thereon a list or inventory of the property distrained, and the name of the place where it may be lodged or kept.

Second : Writing to state that the distrained property will be sold: - The writing shall further set forth that the distrained property will be immediately brought to public sale, unless the amount, with interest, batta, and all the expenses of the distress be previously discharged.

Third : Service when defaulter is absent: - When a defaulter may be absent, a copy of the writing, with the endorsement, shall be fixed or left at his usual place of residence or on the premises where the property may have been distrained, before the expiration of the third day, calculating from the day of the distress.

9.

Procedure when defaulter neglects to pay after notice:

—When the amount due shall not have been paid pursuant to the terms of the demand, and no arrangement for securing the same shall have been entered into. the satisfaction of the Collector or other officer empowered by the Collector in that behalf the distrainer shall transmit an inventory of the property distrained to the nearest public office: empowered to sell distrained property, under Act VII of 1839, in order that it may be publicly sold for the discharge of the arrears due, with interest, batta, and cost of distraint.

10.

On tender of arrear and expenses prior to sale distress withdrawn:

- Where a defaulter may tender payment of the arrears demanded after his property may have been distrained, and prior to the day fixed for sale, together with payment of interest, batta, and all necessary expenses attending distress, the distrainer shall receive the amount immediately upon the same being tendered, and shall forthwith release the property.

11.

Distrained crop, how dealt with:

- The distrainer attaching the crops or ungathered products of the land belonging to defaulter may cause them, to be sold when fit for reaping or gathering, or, at his option may cause them to be reaped or gathered in due season and stored in proper places until sold. In the latter case the expenses of reaping or gathering and storing such crops or products shall be defrayed by the owner upon his redeeming the property, or from the proceeds of the sale in the event of its being sold. When crops or products belonging to a tenant shall have been sold, it shall be lawful for such tenant to deduct the value of the crops or products sold from any rent which may be due by him, then or afterwards, to the defaulter, in respect of the land on which such crops or products have been grown. It shall also be lawful for a tenant whose crops are attached for an arrear of revenue to pay the arrear and deduct the amount in the aforesaid manner from any rent due by him, then or afterwards.

12.

Distrained cattle or goods not to be used:

- The distrainer shall not work the bullocks or cattle, or make use of the goods or effect distrained ; he shall provide the necessary food for the cattle or livestock, the expense attending which shall be defrayed by the owner upon his redeeming the property, or from the proceeds of the sale in the event of its being sold.

13.

Recovery of loss from neglect in respect of distrained property:

- Where property distrained may be stolen or lost, or damaged by reason of the necessary precaution for its due preservation not having been taken, or from its having been improperly worked or made use of, the amount of such loss or damage shall be recoverable by summary process by the Collector from the officer whose neglect or act occasioned the loss or damage, and the amount when recovered shall be paid to person damnified.

14.

Distress to be proportionate to the arrear:

- The distress levied shall not be excessive, that is to say, the property distrained shall be as nearly as possible proportionate to the amount of the arrear.

[14A. Articles exempted from distraint: - The following articles shall not be distrained for arrears of revenue:—

(a)

the necessary wearing apparel, cooking vessels, beds, bedding of the defaulter and such personal ornaments of a woman as in accordance with religious usage cannot be parted with by her;

(b)

his ploughs, implements of husbandry, one pair of ploughing cattle, such manure and seed grain stocked by the defaulter or on his behalf by his relations as may be necessary for the due cultivation of his lands in the ensuing year ; and

(c)

any other class of articles which may be notified by the Government in the Andhra Pradesh Gazette.]

[Inserted by Section 5 of the Madras Rent & Revenue Sales and the Madras Revenue Recovery (A.P. Extension and Amendment) Act, 1958.]

15.

Time of distress:

- Distress shall be made after sunrise and before sunset and not otherwise.

16.

Penalty for fraudulent conveyance of property to prevent distress:

- When a defaulter may make a fraudulent conveyance of property to prevent the distress for arrears, any Civil Court of competent jurisdiction, upon proof thereof, shall summarily cause the property to be delivered up to the distrainer. The defaulter will further be liable to the penalties prescribed by Section 424 of the Indian Penal Code (Central Act 45 of 1860).

17.

Claims to property distrained and sold-Revenue to be the first charge:

- Where any person, not being a defaulter or responsible for a defaulter, may claim a right to the property distrained, and the distrainer may, notwithstanding, cause the same to be sold such claimant, on proof of such right in any Civil Court of competent jurisdiction, and in the event of the distrainer being unable to prove the responsibility for the arrear of revenue, on account of which the property may have been sold, shall recover from the distrainer the full value of such property, with interest, costs, and damages, according to the circumstances of the case. But claims to crops upon the ground or to gathered products of the ground attached, in the possession of the defaulter, whether founded upon a previous sale, mortgage, or otherwise, shall not bar the prior claim of revenue due from the ground upon which such crop or product may have been grown.

18.

Penalty for forcibly or clandestinely taking away distrained property:

- Where it may be proved to the satisfaction of any Civil Court of competent jurisdiction that any person has forcibly or clandestinely taken away property once distrained, the Court may summarily cause such property to be restored to the distrainer. The offender will further be liable to the penalties prescribed by the Indian Penal Code, 1860 (Central Act 45 of 1860).

19.

What places distrainer may force open:

- It shall be lawful for the distrainer to force open any stable, cow house, granary, godown, out house, or other building, and he may also enter any dwelling house the outer door of which may be open and may break open the door of any room of such dwelling house for the purpose of attaching property belonging to a defaulter and lodged therein ; provided always that it shall not be lawful for such distrainer to break open or enter any apartment in such dwelling house, appropriated for the zanana or residence of woman, except as hereinafter provided.

20.

Powers of distrainer to force open doors in the presence of a police officer:

- Where a distrainer may have reason to suppose that the property of a defaulter is lodged within a dwelling house, the outer door of which may be shut, or within any apartment appropriated to women, which, by the usage of the country, are considered private. such distrainer shall represent the same to the officer in charge of the nearest police station. On such representation, the officer in charge of the said station shall send a police officer to the spot ; in the presence of whom the distrainer may, force open the outer door of such dwelling house, in like manner as he may break open the door of any room within the house except the zenana. The distrainer may also, in the presence of the police officer, after due notice given for the removal of women within a zenana, and after furnishing means for their removal in a suitable manner (if they be woman of rank, who according to the, customs of the country cannot appear in public), enter the zenana apartments for the purpose of distraining the defaulter's property deposited therein, but such property, if found, shall be left free to the former occupants.

21.

Punishment for unlawful entry:

- Persons entering the apartments of women, or forcing open the outer door of dwelling houses, contrary to the provisions of this Act, shall on conviction before a Magistrate, be liable to a fine not exceeding Rupees 500 or to imprisonment of either description for any period not exceeding six months.

22.

Proclamation of time of sale, and of property to be sold:

—The public officer, empowered under Act VIII of 1839 to sell distrained property, shall cause to be affixed to the outer door of the defaulter's house, or on the premises where the property may have been distrained a list of the property to be sold, with a notice specifying the place where, and the day and hour at which the distrained property will be sold and shall cause proclamation of the intended sale to be made by beat of drum in the village to which the lands on which the arrear has accrued may belongs ; and in such places as the Collector or other officer empowered by the Collector in that behalf may consider necessary to give due publicity to the sale. No sale shall take place until after the expiration of a period of fifteen days from the date on which the notice may be so affixed.

23.

Sale, how conducted:

- At the appointed time, the property shall be put in one or more lots, as the said officer may consider advisable, and shall be disposed off to the highest bidder. Where the property may sell for more than amount of arrears the surplus, after deducting expenses of process and interest shall be paid to the defaulter.

23A.

Sale of perishable articles:

- Notwithstanding anything in Sections 22 and 23, crops or products which are in their nature speedily perishable shall be sold by the distrainer as early as possible after they are distrained in such manner as may be provided in the rules made by the State Government in this behalf, and the sale proceeds shall be deposited with the public officer referred to in Section 22.

24.

Payment on purchase of distrained property - Re-sale in case of default

- The property shall be paid for in ready money at the time of the sale, or as soon after as the officer holding the sale shall appoint, and the purchaser shall not be permitted to carry away any part of the property until he has paid for the same in full. Where the purchaser may fail in the payment of the purchase money, the property shall be resold, and the defaulting purchaser shall be liable for any loss arising, as well as the expenses incurred on the re-sale. Where the property may, in the second sale sells for a higher price than at the first sale, the difference or increase shall be the property of him on whose account the said first sale was made.

25.

Demand notice to be served prior to attachment of land-Mode of service:

- Before a Collector, or other officer empowered by the Collector in that behalf, proceeds to attach the land of the defaulter, or buildings thereon, he shall cause a written demand to be served upon the defaulter, specifying the amount due, the estate or land in respect of which it is claimed, the name of the party in arrear, the batta due to the person who shall serve the demand, and the time allowed for payment, which shall be fixed with reference to the distance from the land on which the arrear is due to the place at which the money is to be paid. Such demand shall be served by delivering a copy to the defaulter, or to some adult male member of his family at his usual place of abode, or to his authorized agent, or by affixing a copy thereof on some conspicuous part of his last known residence, or on some conspicuous part of the land about to be attached.

26.

Procedure when defaulter neglects to pay:

- When the amount due shall not have been paid pursuant to the terms of the demand, and no arrangement for securing the same shall have been entered into the satisfaction of the Collector, or other officer empowered by the Collector in that behalf, he shall proceed to recover the arrear by the attachment and sale of the defaulter's land in the following manner.

27.

Mode of attachment:

- The attachment shall be effected by affixing a notice thereof to some conspicuous part of the land. The notice shall set forth that unless the arrears, with interest and expenses, be paid within the date therein mentioned, the land will be brought to sale in due course of law. The attachment shall be notified by public proclamation on the land, and by publication of the notice in the District Gazette.

28.

Management of attached property: When Revenue Officer to take charge:

- It shall be lawful for the Collector, when attaching the land of a defaulter, or at any time during such attachment to assume the management of the property attached. In such case he shall appoint an agent with a proper establishment of officers to manage the property, and shall give the agent certificate of appointment with written instructions under his seal and signature, and the expenses of management shall be defrayed out of the income of the property ; provided always, that where the property may be too inconsiderable to admit of its being charged with the salary of an agent, it shall be committed to the care of such Revenue Officer as the Collector may select, who shall be subject to all the provisions herein contained in reference to agents.

29.

Notice of assumption of management:

- Notice of the assumption of management shall forthwith be served on the defaulter in the manner prescribed in Section 25, and shall be notified by public proclamation on the land and by publication in the District Gazette.

30.

Duties of agent:

- It shall be the duty of the agent, during the continuance of management under Section 28, to collect the rents and profits due, or accruing due upon the estate, according to the engagements subsisting between the defaulter and the parties holding under him, or according to established usage where no specific engagement exists. The agent shall keep accounts of all his receipts and disbursements, and submit the same, and pay over the balance, to the Collector, or other officer empowered by the Collector in that behalf monthly, or whenever required, and the defaulter shall be at liberty to inspect the accounts at all reasonable time and to take copies of the same at his own expense without fee.

31.

Liability of agent to suit or prosecution:

- It shall be lawful for the defaulter to proceed by prosecution or suit against the agent, in respect of any criminal or illegal act done by him to the injury of the defaulter or his estate, and all tenants, or other persons holding by subordinate title, shall have the same remedies against him as they would have had against the defaulter if the Act were done by the defaulter.

32.

Effect of existing agreements between landholder and tenants:

- All engagements entered into between the landholder and his tenants, except such as are hereinafter mentioned, shall be binding upon the Collector, during attachment, but all such engagements collusively with a view to defeat or delay the effect of the attachment, and all leases of land at a rate lower than the usual rates of assessment, and not made bona fide for the purpose of erecting factories or buildings or of bringing waste land into cultivation, and all engagements made subsequently to attachment, shall be null and void against the Collector, if he shall so declare subject, however to the right of the parties to such agreement to bring a suit against the Collector in the ordinary tribunals to establish the same ; and all charges or incumbrances upon such land shall be postponed to the payment of the public revenue.

33.

Payments by tenants:

- All payments on account of rent or profits actually due made before public notice of assumption of management to or on behalf of any landholder by any person holding under him, shall be valid against the Collector, and all such payments made after public notice of such assumption or made before they were actually due, shall be null and void against the Collector, who shall be entitled to recover, as arrears of rent, the full amount from the parties by whom it was paid, leaving, them to sue the defaulter in the ordinary Court of law.

34.

Settlement on withdrawal of attachment:

- All sums received from the property attached, after paying the expenses of attachment and management, shall be carried to the credit of the defaulter in discharge of the arrears due, and interest thereon at the rate of six per cent per annum and as soon as all arrears, interest, costs of attachments, and expenses of management shall have been liquidated, the attachment shall be withdrawn, and a full account rendered of all receipts and disbursements during its continuance.

35.

Persons interested in land may release it from attachment:

- It shall be lawful for any person claiming an interest in land which has been, or is about to be attached, to obtain, its release by paying the arrears, interest, and costs incurred ; and all such sums, if paid by a tenant, may be deducted from any rent then or afterwards due by him to the defaulters and if paid by a bona fide mortgagee or other incumbrancer, upon the estate, or by any person not being in possession thereof but bona fide claiming an interest therein adverse to the defaulter shall be a charge upon the land, but shall only take priority over the charges according to the date at which the payment was made. Such sums when paid by a bona fide mortgagee or other incumbrancer shall further constitute a debt from the defaulter.

36.

Procedure in sale of immovable property:

- In the sale of immovable property under this Act the following rules shall be observed.

First-Publication: - The sale shall be by public auction to the highest bidder. The time and place of sale shall be fixed by the Collector of the district in which the property is situated, or other officer empowered by the Collector in that behalf. The time may be either previous to or after the expiration of the fasli year.

Second-Notification one month before sale: - Previous to the sale the Collector, or other officer empowered by the Collector in that behalf, shall issue a notice thereof in English and in the language of the district, specifying the name of the defaulter ; the position and extent of land of his buildings thereon ; the amount of revenue assessed on the land, or upon its different sections. The proportion of the public revenue due during the remainder of the current fasli ; and the time, place, and conditions of sale. This notice shall be fixed up one month at least before the sale in the Collector's office and in the Taluk cutcherry, in the nearest police station house, and on some conspicuous part of the land.

Third-Deposit by purchaser: - A sum of money equal to fifteen per cent of the price of the land shall be deposited by the purchaser in the hands of the Collector, or other officer empowered by the Collector in that behalf at the time of the purchase, and where the remainder of the purchase-money may not be paid within thirty days, the money so deposited shall be liable to forfeiture.

Fourth-Re-sale in default of payment: - When the purchaser may refuse or omit to deposit the said sum of money or to complete the payment of the remaining purchase money, the property shall be re-sold at the expense and hazard of such purchaser, and the amount of all loss or expenses which attend such refusal or omission shall be recoverable from such purchaser in the same manner as arrears of public revenue. Where the lands may, on the second sale, sell for a higher price than at the first sale, the difference shall be the property of him on whose account the said first sale was made.

Fifth-Agents to name principals: - All persons bidding at a sale may be required to state whether they are bidding on their own behalf or as agents, and, in the latter case, to deposit a written authority signed by their principals. If such requisition be not complied with, their bids may be rejected.

[36A. Certain provisions of Section 36 not to apply to cases of purchase by Government: - The provisions of the Third and Fourth clauses of Section 36 shall not apply to cases where immovable property sold under this Act is purchased by the Government.]

[Inserted be Section 2 of the Madras Revenue Recovery (Amendment) Act, 1937 (Madras Act XIV).]

37.

Tender of arrears of revenue up to sunset on day before sale:

- It shall be competent to the defaulter or to any person acting on his behalf or claiming an interest in the land, to tender the full amount of the arrears of revenue with the interest thereon, and all charges which have been incurred in demanding the arrears, or in attaching or managing the estate or in taking the steps necessary for sale and thereupon the sale shall be stayed :

Provided always that such tender must be made before sunset on the day previous to that appointed for the sale, and all sums [paid under this or the next succeeding section]

[Substituted for the words 'so paid' by Madras Act of 1909.]

by any tenant, or bona fide mortgagee, or other incumbrancer or any person bona fide claiming an interest in the estate adverse to the defaulter may be recovered in the manner provided in Section 35.

[37A. Application to set aside sale of immovable property on deposit: - (1) Any person owning or claiming an interest in immovable property sold under this Act may at any time within thirty days from the date of sale, deposit in the treasury of the taluk in which the immovable property is situated—

(a)

a sum equal to five per centum of the purchase-money ;

(b)

a sum equal to the arrears of revenue for which the immovable property, was sold, together with interest thereon and the expenses of attachment, management and sale and other costs due in respect of such arrears, and may apply to the Collector to set aside the sale.

(2)

If such deposit and application are made within thirty days from the date of sale, the Collector shall pass an order setting aside the sale, and shall repay to the purchaser the purchase money so far as it has been deposited, together with the five per centum deposited, by the applicant :

Provided that if more persons than one have made deposits and application under this section, the application of the first depositor to the Collector or to the officer authorized to set aside the sale shall be accepted.

(3)

If a person applies under Section 38 to set aside the sale of immovable property, he shall not, unless he withdraws such application, be entitled to make an application under this section.]

[Inserted by Section 2 of the Madras Revenue Recovery (Amendment) Act, 1937 (Madras Act XIV).]

38.

Application to set aside sale:

(1)

At any time within thirty days from the date of sale of the immovable property, application may be made to the Collector to set aside the sale on the ground of some material, irregularity, or, mistake or fraud, in publishing or conducting it ; but, except as otherwise as hereinafter provided no sale shall be set aside on the ground of any such irregularity or mistake unless the applicant proves to the satisfaction of the Collector that he has sustained substantial injury by reasons thereof.

(2)

If the application be allowed, the Collector shall set aside the sale and may direct a fresh one.

(3)

Order confirming or setting aside sale:— On the expiration of thirty days from the date of the sale, [if no application to have the sale set aside is made under Section 37-A or under Clause (1) of this section]

[Substituted for the words "in no such application is made" by Madras Act 1 of 1906.]

or if such application has been made and rejected, the Collector shall make an order confirming the sale provided that, if he shall have reason to think that the sale sought to be set aside notwithstanding that no such application has been made or on ground other than those alleged in any application which has been made and rejected, he may, after recording his reason in writing set aside the sale.

(4)

Refund of deposit or purchase-money when sale set aside:— Whenever the sale of any lands is not so confirmed or is set aside, the deposit or the purchase-money, as the case may be, shall be returned to the purchaser.

(5)

On confirmation of sale, purchaser's name to be registered:—After the confirmation of any such sale, the Collector shall register the lands sold in the name of the person declared to be the purchaser and shall execute and grant a certificate of sale bearing, his seal and signature to such purchaser.

(6)

Certificate of sale:— Such certificate shall state the property sold and name of the purchaser, and it shall be conclusive evidence of the fact of the purchase in all Courts and Tribunals, where it may be necessary to prove the same ; and no proof of the Collector's seal or signature shall be necessary, unless the authority before whom it is produced shall have reason to doubt its genuineness.

39.

Proclamation of sale:

- Where lands may be purchased in a public sale the Collector or other officer empowered by the Collector in that behalf shall publish in the villages, in which the land sold may be situated, in the cutcherry of the taluk, in the head cutcherry of the district, and in the District Gazette, the name of the purchaser and the date of purchase, together with a declaration of the lawful succession of such purchaser to all the rights and property of the former landholder in the said lands.

40.

Delivery of possession:

- Where, notwithstanding such publication, any lawful purchaser of land may be resisted and prevented from obtaining possession of his purchased land, any Court of competent jurisdiction, on application and production of certificate of sale provided for in the Section 38, shall cause the proper process to be issued for the purpose of putting such purchaser in possession in the same manner as if the purchased land had been decreed to the purchaser by a decision of the Court.

41.

Contracts and payments binding on purchaser:

- All contracts entered into by the defaulter with his tenants, and all payments to him by them shall be binding upon the purchaser to the same extent and under the same conditions as laid down in Sections 32 and 33 of this Act.

42.

Sales to be free of all incumbrances-Disposal of surplus:

- All lands brought to sale on account of arrears of revenue shall be sold free of all incumbrances, and, if any balance shall remain after liquidating the arrears with interest and the expenses of attachment and sale and other costs due in respect to such arrears, it shall be paid over to the defaulter unless such payment be prohibited by the injunction of a Court of competent jurisdiction.

43.

Recovery of arrears due to defaulter on the day of sale:

- Arrears of rent which on the day of sale may be due to the defaulter from his under-tenants shall, in the event of the sale, be recoverable by him after the sale by any process except, distraint, which might have been used by him for that purpose before the said sale.

44.

Sale of land for arrears:

- It shall be lawful for the Collector or other officer empowered by the Collector in that behalf, to sell the whole or any portion of the land of a defaulter in discharge of arrears of revenue ; provided always that, so far as may be practicable, no large section of the land shall be sold than may be sufficient to discharge the arrears with interest, and expenses of attachment, management, and sale.

45.

Apportionment of assessment on sub-division:

- Where only a part of a landed estate held under a Sanad-i-Milkiyat-i-istimrar, or otherwise subject to the payment of a lump assessment, may be sold, the assessment upon such part shall be apportioned by the Collector previous to sale in the following manner.—

The amount of revenue to be assessed on each division shall bear the same proportion to the actual value of such division as the total amount of the revenue of whole estate may bear to the total actual value of the entire estate previous to such division.

Production of accounts-Effect of non-production:— To this end the Collector shall have power to demand from landholders and from the karnams of villages, account of the produce and of the charges attending the management of lands to be divided ; such landholders and karnams shall furnish the said accounts when required for a period of not less than three years next preceding the then current year ; where the landholder may refuse or unreasonably delays to comply with such demand so as to prevent the assessment being fixed on such divided portions of land, the Collector shall proceed to sell the entire estate.

46.

Confirmation of apportionment by Board:

- [x x x]

[Repealed by the Madras Decentralisation Act, 1914 (Madras Act VII of 1914).]

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47.

Sale may be postponed on tender of security:

- When a defaulter tenders security, it shall be lawful for the Collector, or other officer empowered by the Collector in that behalf, to accept it and postpone the sale of the defaulter's property upon such conditions and until such time as he may appoint in the event of default being made in the performance of such conditions, the Collector or such officer may sell

the property and proceed against his defaulter or against his security or both.

48.

Powers of arrest in case of wilful or fraudulent non-payment of arrears-Period of imprisonment-Debt not extinguished:

- When arrears of revenue, with interest and other charges as aforesaid cannot be liquidated by the sale of the property of the defaulter, or his surety, and the Collector shall have reason to believe that the defaulter or his surety is wilfully withholding payment of the arrears, or has been guilty of fraudulent conduct in order to evade payment, it shall be lawful for him to cause the arrest and imprisonment of the defaulter, or his surety not being a female, as hereinafter mentioned ; but no person shall be imprisoned on account of arrears of revenue for a longer period than two years, or for a longer period than six months, if the arrear does not exceed Rs. 500, or for a longer period than three months, if the arrear does not exceed Rs. 50 ; provided that such imprisonment shall not extinguish the debt due to the State Government by the defaulter, or his surety.

49.

Procedure in the case of arrest:

- The Collector shall issue his warrant for the arrest of the defaulter, or his surety, or both, not being females, which shall specify his or their names, the amount of revenue due and the date on which it becomes payable, and the warrant shall be signed and sealed by the authority by whom it was issued. The officer charged with the execution of the warrant shall thereupon arrest the defaulter, or his surety, or both and convey him or them to the district gaol, and deliver the warrant to the gaoler, which shall be a sufficient authority to him to receive the prisoner or prisoners. A copy of such warrant shall be retained by the gaoler, who shall forthwith despatch the original to the officer in charge of the gaol.

50.

Mode of enforcing payment by sureties:

- All the remedies prescribed by this Act in case of revenue defaulter may be employed against their sureties, and it shall be lawful for the Collector, or other officer empowered by the Collector in that behalf, to enforce the same simultaneously with or either previously or subsequently to, their enforcement against the principal ; so nevertheless, that no more than the total sum in arrears, and interest with costs and charges, shall be realized from both.

51.

Removal of crops may be prevented where revenue is payable in kind:

- When land revenue is payable in kind, it shall be lawful for the Collector or other officer empowered by the Collector in that behalf, to prevent the removal of the crop from the land until a division has been made and the portion which belongs to the State Government has been set apart, unless the landholder furnishes such security as the Collector may deem satisfactory.

52.

Similar process in case of other species of revenue, advances, fees, cases, etc.:

- All arrears of revenue other than land revenue due to the State Government, all advances made by the State Government for cultivation or other purposes connected with the revenue, and all fees or other dues payable by any person to or on behalf of the village servants employed in revenue or public duties, and all cases lawfully imposed upon land and all sums due to the State Government, including compensation for any loss or damage sustained by them in consequence of a breach of contract, may be recovered in the same manner as arrears of land revenue under the provisions of this Act, unless the recovery thereof shall have been or may hereafter be otherwise specially provided for.

[52A. Recovery of sums due to certain banks and other public bodies as arrears of land revenue]

[Inserted by Section 2 of A.P. Act No. 18 of 1977.]

: - (1) Without prejudice to any other mode of recovery which is being taken or may be taken, all loans granted and all advances made to any person -

(i)

by any bank to which the re-payment of the said loans and advances is guaranteed by the State Government ; or

(ii)

by such Corporation established by or under a Central or Provincial or State Act, or Government Company as defined in Section 617 of the Companies Act, 1956, or such other public body as may be notified in this behalf by the State Government in the Andhra Pradesh Gazette ;

(iii)

[by any Bank under any welfare scheme or programme, such as Prime Minister's Rozgar Yojana and the like,

sponsored by the State or Central Government as may be notified therein in this behalf by the State Government in the Andhra Pradesh Gazette ;]

[Inserted by Section 2 of A.P. Act No. 22 of 1997 w.e.f. 19.6.1997. Pub. in A.P. Gazette Pt. IV-B (ext.) dated 21-8-1997.]

together with interest on such loans and advances and all sums, such as rents, margin money and the like, due to the bodies mentioned aforesaid may be recovered in the same manner as arrears of land revenue under the provisions of this Act:

Provided that the State Government may, by notification in Andhra Pradesh Gazette, specify the loans and advances together with interest thereon, and other sum due to the bodies mentioned it item (ii) [and item (iii)]

[Inserted by Section 2 of A.P. Act No. 22 of 1997 w.e.f. 19.6.1997. Pub. in A.P. Gazette Pt. IV-B (ext.) dt 21-8-1997.]
above which may be recoverable under the provisions of this section.

Explanation:— In this sub-section, "bank" means any banking company as defined in Clause (c) of Section 5 of the Banking Regulation Act, 1949, and includes-

(a)

the Reserve Bank of India constituted under the Reserve Bank of India Act, 1934.

(b)

the State Bank of India constituted under the State Bank of India Act, 1955.

(c)

any subsidiary bank as defined in the State Bank of India (Subsidiary Bank) Act, 1959 ;

(d)

any corresponding new bank constituted under Section 3 of the Banking Companies (Acquisition and Transfer of Undertaking) Act, 1970.

(e)

[Central Act 40 of 1980:-- any corresponding new Bank constituted under the Banking Companies (Acquisition and Transfer of Undertakings)]

[Added by Ibid.]

[*]

[Added by Ibid. Act, 1980.]

(2)

Out of the proceeds of the dues pertaining to the bodies mentioned in item (ii) [and item (iii)]

[Inserted by Section 2 of A.P. Act No. 22 of 1997 w.e.f. 19.6.1997.]

of sub-section (1) so recovered, ten per centum thereof shall be deducted towards the collection charges and the balances shall be paid by the Collector or other officer empowered by the Collector in that behalf, to the respective bodies.

52B.

Recovery of dues from persons from whom money is due to the defaulter:

(1)

The Collector or any other officer empowered by the State Government in this behalf may, at any time or from time to time, by notice in writing (a copy of which shall be forwarded to the defaulter at his last address known to the Collector or other officer) require any person after being satisfied that money is due or may become due to the defaulter from such person or that such person has held or may subsequently hold money, for or on account of the defaulter, to pay to the Collector or other officer, either forthwith upon the money becoming due or being held or at or within the time specified in the notice (not being before the money becomes due or is held) so much of the money as is sufficient to pay the amount due by the defaulter in respect of arrears or the whole money when it is equal to or less than that amount.

(2)

The Collector or other officer may, at any time, or from time to time, amend or revoke any such notice or extend the time for making any payment in pursuance of the notice.

(3)

Save as otherwise provided in this section, every person to whom a notice is issued under sub-section, (1) shall be bound to comply with such notice.

(4)

The Collector or other officer shall grant a receipt for any amount paid in compliance with a notice issued under sub-section (1) and the person so paying shall be deemed to have made the payment under the authority of the defaulter and the receipt of the Collector or other officer shall constitute a good and sufficient discharge of the liability of such persons to the extent of the amount referred to in the receipt.

(5)

Any person discharging any liability to, the defaulter after receipt of the notice referred to in this section, shall be personally liable to the Collector or other officer to the extent of the liability discharged or to the extent of the liability of the defaulter for the amount due under this Act, whichever is less.

(6)

When any person to whom a notice under this sub-section is sent objects to it by a statement on oath that the sum demanded or any part thereof is not due by him to the defaulter, or that he does not hold any money for or on account of the defaulter, then nothing contained in this section shall be deemed to require such person to pay the sum deemed or any part thereof to the Collector or other officer, but if it is discovered that such statement was false in any material particular, such person shall be personally liable to the Collector or other officer to the extent of his own liability to the defaulter on the date of the notice or to the extent of the defaulter's liability for any sum due under this Act, whichever is less.

(7)

Where any person to whom a notice under sub-section (1) is sent, fails to pay to the Collector or other officer the sum demanded or any part thereof as required in the said notice, such sum shall be recoverable from such person as if it were an arrear of land revenue due from him.]

53.

Process servers to be paid batta:

- Persons employed in serving notices, or in other process under this Act, shall be entitled to batta at such rates as may, from time to time, be fixed by the Board of Revenue with the sanction of the State Government and published in the District Gazette.

54.

Interest and charges recoverable as arrears:

- The batta mentioned in the foregoing section, as well as interest, and all costs and charges incurred under the authority of this Act, shall be recoverable from the defaulter and his sureties in the same manner as arrears of land revenue.

55.

Who to bear expenses of countermanded sale-Recovery thereof:

- Where property having been attached or distrained may be ordered to be put up for the sale, and the sale may be countermanded, the proprietor shall, nevertheless, be responsible for the expenses incurred in consequence of the attachment or distraint, in the same manner as if the sale had taken place ; and in the event of such proprietor omitting to discharge the amount, it shall be recoverable by the process under which the original demand would have been recoverable.

[56. Receipts for payment of revenue: - Every person making a payment of revenue shall be entitled to a receipt for the same, and the receipt shall be signed by such officer or person and shall be in such form and contain such particulars as may be laid down by rules made under this Act.]

[Substituted by Section 2 of the Madras Revenue Recovery (Andhra Pradesh (Amendment) Act VI of 1960.]

57.

Procedure where defaulter or surety resides out of district-Effect of Collector's application-saving of right to sue applicant:

—Where a defaulter or his surety may reside or hold property out of the District wherein default shall have been made, the Collector of the District in which such defaulter or surety resides or holds property shall, on the written application of the Collector in whose District such default has been made, proceed in all respects against the defaulter and his surety, and his or their property in the same manner as if the default had been made in his own district. Evens such application shall be signed and sealed by the Collector making it and shall be conclusive as to the amount due, and the party in arrears: in all proceedings against the Collector acting upon such application. or any person acting under his authority ; and no proof of the seal, or signature of official character, of the Collector making the application shall be required ;

unless the Court shall see reason to doubt its genuineness ; provided always, that nothing herein contained shall affect the right of any party to sue in his own district the Collector who made the application.

A Collector may delegate all or any of his powers and duties under this section to any subordinate revenue officer not below the rank of Deputy Tahsildar.

[57A. Revision: - (1) The State Government may either suo motu or on application made to them, call for and examine the record relating to any decision or order passed or proceeding taken by any authority or officer subordinate to them under this Act for the purposes of satisfying themselves as to the legality or propriety of such decision or order or as to the regularity of such proceeding and pass such order in reference thereto as they think fit.

(2)

The State Government may stay the execution of any such decision, order or proceeding pending the exercise of their powers under sub-section (1) in respect thereof

(3)

Powers of the nature referred to in sub-sections (1) and (2) may also be exercised by the Board of Revenue in the case of any decision or order passed or proceeding taken by any authority or officer subordinate to it.]

[Amended by Act No. 15 of 1964.]

58.

Cognizance or questions relating to rate of revenue:

- No Court of Civil judicature shall have authority to take into consideration or decide any question as to rate of land revenue payable to the State Government or as to the amount of assessment fixed on the portions of a divided estate.

59.

Suits by persons aggrieved by proceeding-Limitation:

- Nothing contained in this Act shall be held to prevent parties deeming themselves aggrieved by any proceedings under this Act, except as hereinbefore provided, from applying to the Civil Courts for redress; provided that Civil Courts shall not take cognizance of any suit instituted by such parties for any such cause of action, unless such suit shall be instituted within six months from the time at which the cause of action arose.

60.

Survival of suits against Collector-Liability for predecessor's acts:

- No suit brought against any Collector by any person deeming himself aggrieved by anything done or purporting to be done under this Act, shall abate by reason of the departure from his district of the Collector against whom such suit shall have been brought ; but the suit shall be continued against the successor of such Collector in all respects as though it had been instituted against himself. A suit may be brought against any Collector in his official capacity on account of anything done or purporting to have been done under this Act by his predecessor, subject to the limitation prescribed in the section provided that no Collector shall be personally liable for any official act of his predecessor.

[60A. Power to make rules: - (I) The State Government may by notification in the Andhra Pradesh Gazette, make its rule or rules to carry out the purposes of this Act.

(2)

All rules made under this section shall, as soon as may be after they are made, be laid on the Table of the Legislative Assembly and' shall be subject to such modifications, whether by way of repeal or amendment, as the Assembly may make within fourteen days thereafter during the session in which they are so laid.]

[Inserted by Madras Rent and Revenue Sales and Madras Revenue Recovery (A.P Extention and Amendment) Act, 1958 (A.P. Act of 1958.)]

61.

Regulation V of 1822 not to apply to sales:

- Regulation V of 1822 shall not be applicable to sales of property under this Act.

62.

Regulation XXVIII of 1802 and I and H of 1803 not to apply to arrears:

- Regulation XXVIII of 1802 and Regulations I and II of 1803 shall be inoperative as respects arrears of revenue recoverable under this Act.

63.

Saving of Regulation V of 1804 and X of 1831:

- Nothing in this Act shall be held to bar the operation of the provisions of Regulation V of 1804 and of Regulation X of

1834, in respect to the sale of lands of minors and other disqualified landholders.

64.

(Scope of Act) Omitted by the Andhra Pradesh Adaptation of Laws Order, 1957.

65.

(Repeal of certain enactments) Repealed by Central Act XII of 1873.

66.

(Commencement of Act) Repealed by Central Act XII of 1873.

Notifications

I. The Andhra Pradesh Revenue Recovery Act, 1864 Section 52-A of the Act—Notification of certain Corporations whose Loans and Advances have to be recovered as Arrears of Land Revenue

[G.O.Ms. No. 287, Revenue (N), dated 3rd February, 1978]

In exercise of the powers conferred by item (ii) of sub-section (1) of Section 52-A of the Andhra Pradesh Revenue Recovery Act, 1864 (Act No. II of 1864), as inserted by the Andhra Pradesh Revenue Recovery (Amendment) Act, 1977 (Andhra Pradesh Act 18 of 1977). the Governor of Andhra Pradesh hereby notifies the Corporations mentioned in column (1) of the Schedule below in respect of which the loans and advances, together with interest thereon, due to them, as specified in column (2) of the said Schedule may be recoverable in the same manner as arrears of land revenue under the provisions of the said section.

The Schedule

Name of the Corporation

Loans and Advances

1

2

1. The Andhra Pradesh State Financial Corporation, Hyderabad.

Term loans as specified below granted on interest to the industries for acquisition of fixed assets as required for industry, viz., land, buildings, plant and machinery, namely:?

I. Rupee Loans

(a) In areas other than backward areas:?

1

2

(i) For small scale units covered under credit guarantee scheme 14% per annum of Interest (5% above Bank rate).

(ii) For medium and large scale units at 15% per annum (6% above Bank rate).

(b) In the notified Backward areas:

(i) For small scale units at 12% per annum (3% above Bank rate.)

(ii) For medium and large scale units at 12.5% per annum (3.5% above Bank rate).

(c) Loans to transport operations (for all areas', at 15.5% per annum (6.5% above Bank rate).

II. Foreign Exchange Loans

(i) For all units in backward areas at 13% per annum.

(ii) For small scale units located in areas other than backward areas as 14% per annum.

(iii) For medium and large scale units located in areas other than backward areas at 14.5% per annum.

Note: (1) The rates of interest mentioned above are with half-yearly rates calculated on product basis.

(2) In the case of technocrats, the rate of interest shall be reduced by 1/2% per annum where the units are located in other

than backward areas.

2. The Andhra Pradesh State Film Development Corporation.

Loans for construction of Cinema halls and film studios

granted at 12% per annum rate of interest.

Loans and Advances or other sums due to the Andhra Pradesh Industrial Development Corporation Limited to be recovered as Arrears of Land Revenue

In exercise of the powers conferred by the proviso to sub-section (1) of Section 52-A of the Andhra Pradesh Revenue Recovery Act, 1864 (Act 11 of 1864), the Governor of Andhra Pradesh hereby specifies that the loans and advances and the other sums mentioned in column (3) of the Schedule below granted or advanced by or due to the Corporation mentioned in the corresponding entry in column (2) thereof may be recovered in the same manner as arrears of land revenue under the provisions of the said Act.

The Schedule

Sl. No.

Name of the Corporation

Loans advances and sums due together with interest thereon

1.

1. Andhra Pradesh Industrial Development Corporation Ltd.

Hyderabad

(a) Terms Loans under Industrial Development Bank of India

Refinance Scheme(b) Bridge Loans(c) Temporary demand

Loans(d) Other Loans

II. Authorising the commercial taxes officers to exercise powers under Section 52-B of Andhra Pradesh Revenue Recovery Act, 1864

[G.O.Ms.No. 1837, Revenue (S), dated 23.4.1980]

In exercise of the powers conferred by sub-section (1) of Section 52-B of the Andhra Pradesh Revenue Recovery Act, 1864 (Act 11 of 1864), the Governor of Andhra Pradesh hereby empowers the officers of the Commercial Taxes Department not below the rank of a Deputy Commercial Tax Officer to exercise the powers conferred under Section 52-B of the said Act in respect of the realisation of arrears under the provisions of the Andhra Pradesh Entertainments Tax Act, 1939 (Act X of 1939).

III. Recovery of loans and advances by Municipal Corporation of Hyderabad Notifications under Section 52 of the Andhra Pradesh Revenue Recovery Act and under Section 7 of Andhra Pradesh Rent and Revenue Sales Act, 1839

[G.O.Ms.No. 1118, Revenue (L.R.), dated 4.11.1994]

1. In exercise of the powers conferred by Clause (ii) of sub-section 52-A of the Andhra Pradesh Revenue Recovery Act, 1864 (Act II of 1864) and the proviso to the said sub-section, the Governor of Andhra Pradesh hereby notifies that the loans, advances, financial assistance and other sums granted or advanced by or due to the Commissioner, Municipal Corporation of Hyderabad under H.U.D.C.O. Housing Scheme shall be recovered in the same manner as arrears of land revenue under the provisions of the said Act.

2. In exercise of the powers conferred by Section 7 of the Andhra Pradesh Rent and Revenue Sales Act, 1839 (Central Act VII of 1839), the Governor of Andhra Pradesh hereby invests all officers not below the rank of Slum Development Officers, Community Development Officers, Community Organisers, Deputy Project Officers, Project Officers and Director of the Urban Community Development, Municipal Corporation of Hyderabad with the powers of a Tahsildar under Section 2 of the said Act to sell property distrained for realisation of the dues under H.U.D.C.O. Housing Scheme to the said Municipal Corporation of Hyderabad.

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